

#	Case Name	Tentative
1.	ALAMO VS. AHMED 2026-01542917	MOTION TO COMPEL ARBITRATION Defendant Arsalan Ahmed, Blake Rose, and Rave Manufacturing, Inc.’s Motion to Compel Arbitration is GRANTED. The Court declines to rule on Defendants’ objections as they are not material to the disposition of this Motion at this time. <u>Existence of a Valid Agreement</u> The party seeking to arbitrate must prove the existence of the agreement. (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223,236.) If an agreement exists, then public policy substantially favors arbitration (see Code Civ. Proc. § 1281.2 [court shall order arbitration if it determines valid agreement to arbitrate exists]) and the burden shifts to the party opposing arbitration to “demonstrate that an arbitration provision cannot be interpreted to require arbitration of the dispute.” (<i>Coast Plaza Doctors Hospital v. Blue Cross of California</i> (2000) 83 Cal.App.4th 677, 686-87.) But “[t]here is no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate.” (<i>Romo v. Y-3 Holdings, Inc.</i> (2001) 87 Cal.App.4th 1153, 1158, quoting <i>Marcus & Millichap Real Estate Investment Brokerage Co. v. Hock Investment Co.</i> (1998) 68 Cal.App.4th 83, 89.) Courts apply general state contract law to determine consent. (<i>Marcus & Millichap, supra</i>, 68 Cal.App.4th at 89.) Defendants have established the existence of an arbitration agreement. Defendants refer to the Partnership Agreement attached to the Complaint which contains a dispute resolution section. (Compl., Ex. 4.) <u>Agreement Encompasses the Dispute at Issue</u> “Any controversies or disputes arising out of or relating to this Agreement will be submitted to mediation in accordance with any statutory rules of mediation in California. If mediation is not successful in resolving the entire dispute or is unavailable, any outstanding issues will be submitted to final and binding arbitration under the rules of the American Arbitration Association.” (Compl., Ex. 4.) Plaintiffs claim their causes of action do not arise from the Agreement because they are not requesting interpretation performance of the Agreement. However, they are requesting the Agreement be rescinded and that their signatures to the Agreement

were procured by fraud. Thus, the claims relate to the Agreement and, thus, are covered by the arbitration provision.

Defenses to Arbitration

Waiver

Plaintiffs first argue Defendants waived their right to arbitrate. They claim Defendants failed to engage in friendly negotiations amongst the parties as required under the Partnership Agreement, delayed in filing the motion, refused to accept Plaintiff's offer to arbitrate, and engaged in bad faith.

Plaintiffs' facts showing Defendants did not engage in friendly negotiations and the delay in seeking arbitration are not sufficient to show there was a knowing waiver of Defendants' right to arbitrate. "To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) "Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it." (*Ibid.*) Neither failing to engage in pre-dispute negotiations or failing to demand arbitration prior to responding to a complaint are sufficient to show intent to relinquish the right.

Defendants' refusal to accept Plaintiffs' offer to arbitrate which required shifting all costs to Defendants then offering to split them pursuant to the Costs section of the Agreement is not cause for a finding of bad faith. "The decisions likewise hold that the bad faith or wilful misconduct of a party may constitute a waiver and thus justify a refusal to compel arbitration. Although a number of authorities properly caution that a waiver of arbitration is not to be lightly inferred, our cases establish that no single test delineates the nature of the conduct of a party that will constitute such a waiver." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 983 (cleaned up).) Similarly, Defendants claiming Plaintiffs did not have an interest in Rave but later reversing its claims is insufficient to constitute a bad faith waiver.

Rescission

"In order to defeat a petition to compel arbitration, the parties opposing a petition to compel must show that the asserted fraud claim goes specifically 'to the "making" of the agreement to arbitrate,' rather than to the making of the contract in general." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951,

		973.) Here, Plaintiffs fraud allegations relate to the contract in general and no fraud allegation refers to the arbitration provision. Thus, Plaintiff's rescission defense does not apply. Accordingly, Defendants have shown the existence of an agreement to arbitrate which encompasses the claims at issue and Plaintiffs have failed to demonstrate a defense to enforcement. Thus, Defendants' motion is granted. The Court sets an OSC re: ADR for 3/12/2027 at 9:00 a.m., in Dept. C32.
2.	BAQI VS. MACFOXBIKE 2026-01571161	MOTION FOR PREFERENCE The unopposed Motion for Trial Preference by Plaintiff Farah Baqi, a minor, by a through Guardian ad Litem Faridoon Baqi is GRANTED. Code of Civil Procedure section 36(b) states, "A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole. A civil action subject to subdivision (a) shall be given preference over a case subject to this subdivision." Section 36(f) further provides, "(f) Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party." Here, Plaintiff was born on 1/9/13 and is currently 13 years old. She sues for personal injuries sustained while she was riding an E-bike and therefore has a substantial interest in the litigation. Plaintiff's counsel declares that all essential parties have been served with process pursuant to Code of Civil Procedure section 36(c)(1).) Plaintiff timely served the motion on Defendants by mail on 7/9/26. The motion is unopposed. Plaintiff is entitled to trial setting preference under section 36(b) and the motion is granted. Counsel shall appear at the hearing to discuss their availability for trial on a date within 120 days.